



Bill Number: H.B. 4117

Kavanagh Floor Amendment

Reference to: JUDICIARY AND ELECTIONS

S/E Committee amendment

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Specifies that a person commits *interference with a religious service or religious activity* by making any protracted commotion, utterance or display, rather than engaging in conduct that constitutes *disorderly conduct*, in a place of religious worship that disrupts a religious service or religious activity.
2. Removes the specification that a person does not need to be charged with or convicted of *disorderly conduct* to be found in violation of *interfering with a religious service or religious activity*.
3. Modifies the criteria necessary for *interfering with a religious service or religious activity* to be classified as a class 6 felony.
4. Replaces the definition of *obstruct* with *obstructing, blocking or impeding*, which means rendering passage impassable or unreasonably difficult or hazardous.
5. Defines *physical intimidation* as placing a person in reasonable apprehension of physical injury to oneself or another person.
6. Redefines *place of religious worship* as a privately owned building, structure or designated location where people assemble for a religious service or religious activity.
7. Removes the definition of *in concert with another person*.
8. Makes conforming changes.

KAVANAGH FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 4117
(Reference to JUDICIARY AND ELECTIONS S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Title 13, chapter 29, Arizona Revised Statutes, is
4 amended by adding section 13-2925, to read:

5 13-2925. Interfering with a religious service or religious
6 activity; exception; classification; definitions

7 A. A PERSON COMMITS INTERFERING WITH A RELIGIOUS SERVICE OR
8 [RELIGIOUS] ACTIVITY IF, WITHOUT LEGAL AUTHORITY, THE PERSON INTENTIONALLY
9 INTERFERES WITH A RELIGIOUS SERVICE OR [RELIGIOUS] ACTIVITY BY
10 INTENTIONALLY DOING EITHER OF THE FOLLOWING:

11 1. OBSTRUCTING, BLOCKING OR IMPEDING ANOTHER PERSON'S ABILITY TO
12 ENTER OR EXIT A PLACE OF RELIGIOUS WORSHIP.

13 2. ~~[ENGAGING IN CONDUCT THAT CONSTITUTES DISORDERLY CONDUCT PURSUANT~~
14 ~~TO SECTION 13-2904, SUBSECTION A, PARAGRAPH 1, 2, 3 OR 4 AND] [MAKING ANY~~
15 ~~PROTRACTED COMMOTION, UTTERANCE OR DISPLAY IN A PLACE OF RELIGIOUS~~
16 ~~WORSHIP] THAT [CONDUCT] DISRUPTS A RELIGIOUS SERVICE OR [RELIGIOUS]~~
17 ~~ACTIVITY.~~

18 B. THIS SECTION DOES NOT APPLY TO EITHER OF THE FOLLOWING:

19 1. PEACEFUL PICKETING, PROTESTING OR OTHER EXPRESSIVE ACTIVITY.

20 2. A LAW ENFORCEMENT OFFICER, A FIRST RESPONDER OR ANY OTHER
21 AUTHORIZED PERSON WHO IS ACTING WITHIN THE SCOPE OF THE PERSON'S OFFICIAL
22 DUTIES.

23 ~~[C. A PERSON DOES NOT NEED TO BE CHARGED WITH OR CONVICTED OF A~~
24 ~~VIOLATION OF SECTION 13-2904 TO VIOLATE SUBSECTION A, PARAGRAPH 2 OF THIS~~
25 ~~SECTION.]~~

26 ~~[D.]~~ [C.] INTERFERING WITH A RELIGIOUS SERVICE OR [RELIGIOUS]
27 ACTIVITY IS A CLASS 1 MISDEMEANOR EXCEPT THAT IT IS A CLASS 6 FELONY IF
28 [EITHER] [ANY] OF THE FOLLOWING APPLIES:

1 1. THE PERSON HAS BEEN PREVIOUSLY CONVICTED OF A VIOLATION OF THIS
2 SECTION.

3 2. THE PERSON ~~[DOES EITHER OF THE FOLLOWING] [USED FORCE, THREATS~~
4 ~~OF FORCE OR PHYSICAL INTIMIDATION] IN THE COMMISSION OF THE OFFENSE[.][~~7~~~~

5 ~~(a) ACTED IN CONCERT WITH ANOTHER PERSON;~~

6 ~~(b) USED FORCE, THREATS OF FORCE OR PHYSICAL INTIMIDATION.]~~

7 ~~[3. THE PERSON, WITH TWO OR MORE OTHER PERSONS ACTING TOGETHER,~~
8 ~~COMMITTS A VIOLATION OF SUBSECTION A, PARAGRAPH 1 OF THIS SECTION.]~~

9 E. FOR THE PURPOSES OF THIS SECTION:

10 ~~[1. "IN CONCERT WITH ANOTHER PERSON" MEANS ACTING TOGETHER WITH ONE~~
11 ~~OR MORE PERSONS PURSUANT TO A SHARED INTENT OR AGREEMENT, WHETHER EXPLICIT~~
12 ~~OR IMPLICIT, THAT AT LEAST ONE OF THEM OR ANOTHER PERSON WILL ENGAGE IN~~
13 ~~CONDUCT THAT CONSTITUTES AN OFFENSE.~~

14 ~~2.] [1.] "[OBSTRUCT] [OBSTRUCTING, BLOCKING OR IMPEDING]" MEANS TO~~
15 ~~RENDER PASSAGE [IMPASSABLE OR] UNREASONABLY DIFFICULT OR HAZARDOUS[.] [BY~~
16 ~~DOING EITHER OF THE FOLLOWING:~~

17 ~~(a) STANDING, SITTING, LYING DOWN OR PLACING AN OBJECT IN ORDER TO~~
18 ~~PHYSICALLY BLOCK OR RESTRICT MOVEMENT.~~

19 ~~(b) PREVENTING THE FREE PASSAGE OF A PERSON OR VEHICLE.]~~

20 ~~[2. "PHYSICAL INTIMIDATION" MEANS TO PLACE A PERSON IN REASONABLE~~
21 ~~APPREHENSION OF PHYSICAL INJURY TO ONESELF OR ANOTHER PERSON.]~~

22 3. "PLACE OF RELIGIOUS WORSHIP" MEANS ~~[EITHER OF THE FOLLOWING:~~

23 ~~(a)] A [PRIVATELY OWNED] BUILDING, STRUCTURE OR DESIGNATED LOCATION~~
24 ~~WHERE PEOPLE [REGULARLY] ASSEMBLE FOR A RELIGIOUS SERVICE OR [RELIGIOUS]~~
25 ~~ACTIVITY.~~

26 ~~[(b) ANY LOCATION, WHETHER PUBLIC OR PRIVATE, WHEN AN ORGANIZED~~
27 ~~RELIGIOUS SERVICE OR ACTIVITY IS OCCURRING OR IS ABOUT TO OCCUR.]"~~

28 Enroll and engross to conform

29 Amend title to conform

JOHN KAVANAGH

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